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2026:PHHC:087178



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-31317-2026
Decided On: 10.06.2026**

SWARANJIT SINGH

...PETITIONER(S)

VERSUS

STATE OF PUNJAB

...RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. RS Bains, Sr. Advocate with
Mr. Sarabjot S. Cheema, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.181 dated 01.05.2026 under Sections 420, 506, 120-B of IPC (Section 318(4), 351(3), 61(2) of BNS registered at Police Station Kharar, District SAS Nagar, Mohali (Annexure P-1).

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the essential ingredients of the offence of cheating are wholly absent in the present case, inasmuch as there is no allegation that the petitioner had any dishonest or fraudulent intention at the inception of the transaction, which is a sine qua non for constituting an offence under Section 420 IPC/Section 318 BNS. It is

contended that there is not even any breach of contract attributable to the petitioner and that a subsequent civil dispute cannot be given a criminal colour so as to attract penal liability. Counsel further submits that the FIR itself demonstrates that the consideration amounts were duly paid and that the transactions were acted upon by the parties. It is also argued that the impugned FIR was registered pursuant to the proceedings in CRM-M-2338-2026 titled *Saroj Kumari and Others versus State of Punjab and Others*, wherein only notice of motion had been issued on the basis of the allegations made by Saroj Kumari. It is further contended that Surjit Singh, who is alleged to be the principal person connected with the dispute, has not been arrayed as an accused, thereby rendering the investigation arbitrary, selective, and one-sided. The relevant documents are already in possession of the investigating agency. The petitioner further submits that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State/Complainant

Mr. Satnam Preet Singh Chauhan, DAG Punjab for respondent/State and Mr. Vishal Verma, Advocate and Ms. Deepika Chaoudhary, Advocate for the complainant vehemently oppose the prayer made by learned counsel for the petitioner while arguing that the petitioner, in connivance with others, has allegedly cheated as many as 26 persons by selling plots situated in an unapproved colony. Learned counsel further submitted that the complainants have been subjected to fraud at the hands of both the purchaser and the seller, and that the rights and interests flowing from the Agreement to Sell are yet to be adjudicated and determined by the competent Civil Court. In view of the seriousness of the allegations and the nature of the

accusations levelled against the petitioner, it was argued that he does not deserve the concession of anticipatory bail.

3. Analysis

Having heard learned counsel for the parties and perused the material available on record, this Court finds that the dispute essentially emanates from an Agreement to Sell dated 25.06.2021. It has been brought to the notice of this Court that Surjit Singh allegedly failed to perform his obligations under the said agreement and, in relation thereto, civil proceedings have already been initiated before the competent Court of law. The allegations levelled against the petitioner are primarily based on documentary transactions, and the relevant documents are already in the custody of the investigating agency. Admittedly, no recovery is required to be effected from the petitioner.

The petitioner has further undertaken in para 30 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'*

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

10.06.2026

NainaRajput

Whether speaking/reasoned

: Yes/No

Whether reportable

: Yes/No